

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. -
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-16

Served: December 27, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

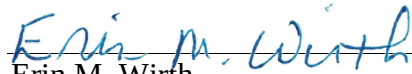
REMAND SCHEDULING ORDER

On December 23, 2022, the parties filed their third joint status report (“JSR”) with proposed schedule. The schedule proposed by the parties is reasonable and is adopted. Given the tight timeline set by the Commission, the parties must resolve the proceeding expeditiously. In addition, the schedule cannot be extended as there needs to be sufficient time to review the parties’ filings and issue an initial decision. The parties must work together to ensure that deadlines are met.

The parties are hereby **ORDERED** to abide by the following schedule:

January 30, 2023	Depositions to conclude;
February 3, 2023	Last day to serve discovery requests;
February 10, 2023	End of discovery;
February 24, 2023	Parties submit joint situations of facts and joint appendix;
March 3, 2023	BEIC’s brief, findings of fact, and appendix deadline;
March 17, 2023	Respondent’s brief, findings of fact, appendix, and response deadline;
March 24, 2023	BEIC’s reply brief deadline.

Any request for an extension will be reviewed for good cause, even if the parties agree on the requested extension. The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).


Erin M. Wirth
Chief Administrative Law Judge